

TERMS OF SERVICE

Great Creation Studios — Effective Date: _____

These Terms of Service ("Terms") govern the use of creative services, digital platforms, and client portals provided by Great Creation Studios ("GCS," "we," "our"). By engaging our services or accessing the Client Portal, you ("Client," "you") agree to be bound by these Terms.

1. Services Provided

GCS provides professional creative services including but not limited to:

- a. Graphic design, branding, and visual identity development;
- b. Web design, front-end development, and user interface design;
- c. Print design, packaging, and marketing collateral;
- d. Motion graphics, video editing, and multimedia production;
- e. Photography services including product, portrait, and event photography;
- f. Brand strategy, creative direction, and consulting;
- g. Digital asset management and file delivery via the Client Portal.

2. Client Portal Access

Upon engagement, Clients receive access to the GCS Client Portal, which provides:

- a. Secure proof review with annotation and commenting tools;

- b. Project status reports including health metrics, budgets, and timelines;
- c. Direct communication with the GCS team via integrated messaging;
- d. Access to invoices, contracts, and project deliverables.

Portal access credentials are confidential and must not be shared with unauthorized parties. GCS reserves the right to revoke access for security violations.

3. Project Workflow

All projects follow the GCS standard workflow:

1. **Brief & Discovery** — Client provides project requirements, references, and brand guidelines.
2. **Proposal & Agreement** — GCS delivers a scope of work, timeline, and pricing for Client approval.
3. **Design & Development** — GCS executes the creative work with milestone check-ins.
4. **Review & Revision** — Proofs are delivered via the Client Portal for annotation-based feedback.
5. **Approval & Delivery** — Upon final approval, deliverables are released in all specified formats.

4. Revisions

Each project phase includes a defined number of revision rounds as specified in the project agreement. Additional revisions beyond the included rounds will be billed at the hourly rate specified in the project agreement. Revision requests must be submitted through the Client Portal annotation system or in writing via the messaging system.

5. Payment Terms

- a. A non-refundable deposit of fifty percent (50%) of the total project fee is required before work commences;
- b. The remaining balance is due upon project completion and final delivery;
- c. For projects exceeding \$5,000, milestone-based payment schedules will be established;
- d. Invoices are due within thirty (30) days of issuance. Late payments are subject to a 1.5% monthly interest charge;
- e. GCS reserves the right to suspend work on any project with an outstanding balance exceeding 30 days.

6. Intellectual Property

- a. **Work Product:** Upon full payment, Client receives a perpetual, non-exclusive license to use the final deliverables for the purposes specified in the project agreement;
- b. **Transfer of Ownership:** Full intellectual property transfer occurs only when explicitly stated in a signed project agreement and after receipt of complete payment;
- c. **Pre-existing IP:** GCS retains ownership of all pre-existing intellectual property, tools, frameworks, templates, and methodologies used in the creation of deliverables;
- d. **Portfolio Rights:** GCS retains the right to display all work in its portfolio, case studies, and marketing materials unless a separate confidentiality agreement prohibits such use.

7. Confidentiality

GCS treats all Client information, materials, and project details as confidential. We implement industry-standard security measures including encrypted file transfers, access-controlled client portals, and secure data storage. For projects requiring enhanced confidentiality, a separate Non-Disclosure Agreement is available.

8. Cancellation & Termination

- a. Either party may terminate a project with thirty (30) days' written notice;
- b. Upon cancellation, Client is responsible for all work completed to date, billed at the agreed project rate;
- c. The initial deposit is non-refundable and is credited toward the final invoice;
- d. GCS will deliver all completed work-in-progress upon receipt of outstanding payments;
- e. Client Portal access is revoked thirty (30) days after project completion or termination.

9. Limitation of Liability

GCS's total liability for any claim arising from services rendered shall not exceed the total fees paid by Client for the specific project giving rise to the claim. GCS shall not be liable for any indirect, incidental, special, consequential, or punitive damages, including lost profits, lost revenue, or business interruption.

10. Warranties & Disclaimers

GCS warrants that all work is original and does not knowingly infringe upon the intellectual property rights of any third party. GCS provides no warranty regarding the commercial success, market reception, or business outcomes resulting from the use of delivered creative work.

11. Dispute Resolution

Any disputes arising from these Terms shall first be addressed through good-faith negotiation between the Parties. If negotiation is unsuccessful, disputes shall be submitted to binding arbitration in accordance with the rules of the American Arbitration Association.

12. Amendments

GCS reserves the right to modify these Terms at any time. Clients will be notified of material changes through the Client Portal. Continued use of GCS services after notification constitutes acceptance of the modified Terms.